



Maritime &
Coastguard
Agency

Guidance

MGN 484 (M) Amendment 4 Maritime Labour Convention, 2006: Health and Safety Published Accident Statistics - Information and Advice

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Summary

Regulation 7 of the merchant shipping and fishing vessels (health and safety at work) regulations 1997, as amended by the merchant shipping (maritime labour convention) (health and safety) regulations 2014, requires employers and shipowners to make a suitable and sufficient risk assessment of risks to the health and safety of workers and other seafarers, arising during the normal course of their duties.

In carrying out such a risk assessment, shipowners are required to have regard to the statistical information and associated advice referred to in this guidance note.

This guidance note gives information about published marine accident statistics and safety advice which are currently available.

MCA expects shipowners to use the relevant information to maintain awareness of hazards and risks which are causing accidents on board ships, and of recommended best practice to avoid occupational accidents.

Amendment 4 includes the most recent information sources.

1. Introduction

1.1 The merchant shipping and fishing vessels (health and safety at work) regulations (S.I. No.1997/2962), as amended by the merchant shipping (maritime labour convention)(health and safety) regulations 2014, (the “health and safety regulations (as amended)”) require the employer and shipowner to make a suitable and sufficient risk assessment of risks to the health and safety of workers and other seafarers, arising during the normal course of their duties. Marine Guidance Note 636 (M) Amendment 2 (<https://www.gov.uk/government/publications/mgn-636-m-health-and-safety-at-work-regulations-1997>) gives guidance on risk assessments.

1.2 In carrying out such a risk assessment, shipowners are required to have regard to the statistical information and associated advice referred to in this Guidance Note.

1.3 This implements for the UK Standard A4.3.8 of the Maritime Labour Convention, 2006.

1.4 This requirement does not apply to pleasure vessels, fishing vessels, warships or naval auxiliaries, ships of traditional build, or ships not ordinarily engaged in commercial operations.

2. Published statistical information

2.1 Deaths and Personal injuries on UK-register ships

2.1.1 The Marine Accident Investigation Branch (MAIB) publishes an annual report which includes summary statistics and recommendations of reported accidents during the reporting year. The most recent report covers the calendar year 2022.

<https://www.gov.uk/government/collections/maib-annual-reports>
(<https://www.gov.uk/government/collections/maib-annual-reports>)

2.1.2 The tables in part three give some high-level statistics on the number of injuries and fatalities, the type of injury and body part affected, and the part of the ship where the injury or fatality took place.

2.1.3 The Chief Inspector’s statement highlights some themes and concerns emerging from the investigations undertaken by the Branch during the year. Part 2 summarises investigation reports and safety bulletins produced, and recommendations made.

3. Safety alerts

3.1 MAIB safety bulletins are produced when urgent safety issues emerge during the course of an investigation and the Chief Inspector decides to disseminate this important information in advance of the main investigation report being produced.

http://www.maib.gov.uk/publications/safety_bulletins.cfm
(http://www.maib.gov.uk/publications/safety_bulletins.cfm)

3.2 MAIB also publishes safety digests, which contain anonymous articles involving vessels from the merchant, fishing and small craft sector, drawing attention to some of the lessons arising from investigations into recent accidents and incidents.

<https://www.gov.uk/government/collections/maib-safety-digests>
(<https://www.gov.uk/government/collections/maib-safety-digests>)

3.3 The Confidential Hazardous Incident Reporting Programme (CHIRP) publishes quarterly FEEDBACK newsletters for the maritime sector containing a selection of reports (with the reporters' consent) combined with CHIRPs response, to make a wider audience aware of situations.

<https://chirp.co.uk/category/maritime/general-maritime-3/>
(<https://chirp.co.uk/category/maritime/general-maritime-3/>) Anyone that has witnessed a maritime incident or near miss that does not require reporting but feels that industry could learn from it is encouraged to confidentially report it to CHIRP.

3.4 MCA publishes on its website safety bulletins to raise awareness of recent safety issues.

<https://www.gov.uk/government/publications/maritime-and-coastguard-agency-mca-safety-bulletins>
(<https://www.gov.uk/government/publications/maritime-and-coastguard-agency-mca-safety-bulletins>)

3.5 Not all the information published will be of value to all shipowners, and other statistics or sources of advice may be available which are not listed, which are more relevant to a particular operations or shipowners.

3.6 MCA expects shipowners to use the relevant information available to maintain awareness of hazards and risks which are causing accidents on

board ships, and of recommended best practice to avoid occupational accidents.

4. References to this notice in the health and safety regulations (as amended by the merchant shipping (maritime labour convention) (health and safety) (Amendment) regulations 2014)

4.1 The reference to this notice in the Health and Safety Regulations (as amended) is identified below. This is the version of Marine Guidance Note 484(M) Amendment 4, which is considered to be relevant until further notice.

4.2 Reg 7(4)(A): The statistical information and associated advice to which shipowners should have regard when conducting a risk assessment under regulation 7 includes the information and advice listed in sections 2 and 3 of this notice.

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